

CV-26-007555 SINGH, AMANDEEP vs DHILLON, AMRITPAL, SINGH – Plaintiff Amandeep Singh’s Motion to Enforce Settlement Agreement – DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: The instant motion appears to rely on the summary procedures for settlement enforcement prescribed by Code Civ. Proc. § 664.6, which are not available in an action other than the one in which the subject settlement was reached. (Code Civ. Proc. § 664.6; see, e.g., Viejo Bancorp, Inc. v. Wood (1989) 217 Cal.App.3d 200.) Further, the law disapproves of this type of “non-statutory speaking motion” in this context; the proper vehicle for Plaintiff’s efforts herein appears to be a motion for summary judgment, which must meet the requirements set forth in Code Civ. Proc. § 437c. (See, e.g. Corkland v. Boscoe (1984) 156 Cal.App.3d 989, 992.) Moreover, while the Court has not reviewed the evidence in detail due to the above procedural issues, it appears that the parties dispute the underlying facts regarding their required performance under the subject agreement. The following are the tentative rulings for cases calendared before Judge David I. Hood in Department 24:

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